

22. 9:01 AM CASE NUMBER: C24-00366
CASE NAME: DRILL TECH DRILLING & SHORING, INC. VS. DAVID W. WHITE, INC.
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES FROM DEFENDANT DAVID WHITE & ASSOCIATES TO AMENDED REQUESTS FOR ADMISSION, SET ONE
FILED BY: DRILL TECH DRILLING & SHORING, INC.
TENTATIVE RULING:
See Line 19.

Law & Motion
Add On

23. 9:00 AM CASE NUMBER: C23-01839
CASE NAME: DREW MALM VS. SCOTT HAMMEL
*HEARING ON MOTION IN RE: LEAVE TO FILED AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Drew Malm's ("Plaintiff") Motion for Leave of Court to file a Third Amended Complaint ("TAC") pursuant to Code Civ. Proc., § 473(a)(1), so that it may add a cause of action for the Breach of Covenant and Fair Dealing. Defendant filed this motion on January 12, 2026. The Motion is opposed by all named Defendants.

The Court is inclined to grant Plaintiff's motion but is unable to at this time due to the procedural defects outlined below. As explained below, **the Court continues this motion to provide Defendant time to comply with the mandatory rules and statutes described in the Court's ruling. The Parties are ordered to appear to discuss dates for continuing the motion.**

Procedural Posture

There is a Motion for Summary Judgment/Adjudication brought by all named Defendants to be heard on this same calendar.

A trial date has not been set.

Legal Standard

It is well-established under California law that leave to amend is to be granted liberally, to accomplish substantial justice for both parties. (CCP § 473(a); *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-89.) Indeed, "it is a rare case in which a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case." (*Douglas v. Superior*

Court (1989) 215 Cal.App.3d 155, 158.) “If the motion to amend is timely made and... granting...the motion will not prejudice the opposing party, it is error to refuse permission to amend.” (*Morgan v. Sup. Ct.* (1959) 172 Cal.App.2d 527, 530.)

It is also a well-known policy of the law to permit amendments of pleadings liberally in order that litigation may be tried on its merits. (*Cardenas v. Ellston* (1968) 259 Cal App. 2d 232.) Courts are liberal in allowing amendments of complaints in order that, if possible, no litigant will be deprived of his day in court because of mere technicalities of pleading. (*Barr v. Carroll* (1954) 128 Cal. App. 2d 23.) California’s liberal policy favoring amendment applies “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.)

Analysis

Lack of Prejudice Since Defendants’ MSJ/A Has Been Decided

Defendants’ strongest argument against granting leave to amend is that it would render its Motion for Summary Judgment/Adjudication (“MSJ”) moot.

Since the Court has heard and decided Defendants’ MSJ, the potential prejudice to Defendants to have their MSJ rendered moot is no longer an issue.

Plaintiff Additional Cause of Action for Breach of the Covenant of Good Faith and Fair Dealing is Procedurally Proper

First, Rule 3.1324(a) requires that a motion to amend must identify every proposed deletion and addition by page, paragraph, and line number. Defendant has filed a proposed redlined amended pleading which meets this requirement.

Second, Rule 3.1324(b) requires a supporting declaration specifying: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) why the request was not made earlier. Plaintiff’s Counsel Cary D. McReynold’s declaration fails to address any of the four items relevant to the rule. (See McReynold Declaration ¶¶ 1-3.)

Conclusion

The Court is inclined to grant Plaintiff’s motion but is unable to at this time due to the procedural defects outlined above. As analyzed above, **the Court continues this motion to provide Defendant time to comply with the mandatory rules and statutes described in the Court’s ruling. The Parties are ordered to appear to discuss dates for continuing the motion.**